

(3) Amendments to subsection (48) by House Bill 94-92 and House Bill 94-1 were harmonized.

(4) Subsection (9.6) was numbered as (9.5) in House Bill 94-1294 but was renumbered on revision for ease of location.

(5) Subsection (1.1) was numbered as (1) in House Bill 99-1082 but was renumbered on revision for ease of location; subsection (1.2) was numbered as (1) in House Bill 99-1152 but was renumbered on revision for ease of location; and subsection (46.3) was numbered as (46.5) in House Bill 99-1097 but was renumbered on revision for ease of location.

(6) Amendments to subsection (19.5) by House Bill 03-1241 and Senate Bill 03-102 were harmonized.

(7) Subsection (15)(b) provided for the repeal of subsection (15), effective January 1, 2006. (See L. 2004, pp. 1361, 1213.)

Cross references: (1) For the legislative declaration in HB 04-1227, see section 1 of chapter 334, Session Laws of Colorado 2004. For the legislative declaration in HB 14-1164, see section 1 of chapter 2, Session Laws of Colorado 2014. For the legislative declaration in SB 17-242, see section 1 of chapter 263, Session Laws of Colorado 2017. For the legislative declaration in HB 19-1266, see section 1 of chapter 283, Session Laws of Colorado 2019.

(2) For the short title ("Voter Access and Modernized Elections Act") and the legislative declaration in HB 13-1303, see sections 1 and 2 of chapter 185, Session Laws of Colorado 2013.

(3) For the short title ("Colorado Votes Act") in HB 19-1278, see section 1 of chapter 326, Session Laws of Colorado 2019.

(4) For the short title ("Colorado Election Security Act") and the legislative declaration in SB 22-153, see sections 1 and 2 of chapter 322, Session Laws of Colorado 2022.

1-1-105. Elections conducted pursuant to provisions that refer to qualified electors. Any election, and any acts relating thereto, including but not limited to elections under this code, the "Colorado Municipal Election Code of 1965", article 10 of title 31, C.R.S., school elections under title 22, C.R.S., and special district elections under title 32, C.R.S., which were conducted prior to July 1, 1987, pursuant to provisions which refer to a qualified elector rather than a registered elector and which were valid when conducted, shall be deemed and held to be legal and valid in all respects.

Source: L. 92: Entire article R&RE, p. 631, § 1, effective January 1, 1993.

Editor's note: This section is similar to former § 1-1-104.5 as it existed prior to 1992.

1-1-105.5. District elections conducted on or prior to May 3, 2016 - limitations on contests based on elector qualifications - exceptions - validation - definitions. (1) (a) Except as provided in paragraph (c) of this subsection (1), for any district election conducted under this code or the "Colorado Local Government Election Code", article 13.5 of this title, and notwithstanding any provision of law to the contrary:

(I) No district election conducted prior to April 21, 2016, may be contested on the grounds that any person who voted at such election was not an eligible elector unless such a contest was initiated prior to April 21, 2016.

(II) No district election conducted on May 3, 2016, may be contested on the grounds that any person who voted at such election was not an eligible elector unless such a contest was initiated within the time period specified in section 1-11-213 or section 1-13.5-1403, C.R.S., as applicable.

(b) Except when a contest to elector qualifications has been timely initiated as described in this section, this section validates, ratifies, and confirms the qualifications of any person who voted at any district election held on or before May 3, 2016, notwithstanding any defects or irregularities in such qualifications.

(c) The bar to election contests in paragraph (a) of this subsection (1) does not apply to:

(I) Any district election conducted after January 1, 2012, if the contest to such election is made on the grounds that federal or state constitutional rights of eligible electors were violated in the conduct of the election; or

(II) Any district election conducted before January 1, 2012, if the contest to such election was initiated prior to April 21, 2016.

(2) For purposes of this section, "district" means any district formed under part 5 of article 20 of title 30, part 6 of article 25 of title 31, part 8 of article 25 of title 31, part 12 of article 25 of title 31, or article 1 of title 32, C.R.S.

Source: L. 2016: Entire section added, (SB 16-211), ch. 174, p. 595, § 2, effective May 18.

Cross references: For the legislative declaration in SB 16-211, see section 1 of chapter 174, Session Laws of Colorado 2016.

1-1-106. Computation of time. (1) Calendar days shall be used in all computations of time made under the provisions of this code.

(2) In computing any period of days prescribed by this code, the day of the act or event from which the designated period of days begins to run shall not be included and the last day shall be included. Saturdays, Sundays, and legal holidays shall be included, except as provided in subsection (4) of this section.

(3) If a number of months is to be computed by counting the months from a particular day, the period shall end on the same numerical day in the concluding month as the day of the month from which the computation is begun; except that, if there are not that many days in the concluding month, the counting period shall end on the last day of the concluding month.

(4) If the last day for any act to be done or the last day of any period is a Saturday, Sunday, or legal holiday and completion of such act involves a filing or other action during business hours, the period is extended to include the next day which is not a Saturday, Sunday, or legal holiday.

(5) If the state constitution or a state statute requires doing an act in "not less than" or "no later than" or "at least" a certain number of days or "prior to" a certain number of days or a certain number of months "before" the date of an election, or any phrase that suggests a similar meaning, the period is shortened to and ends on the prior business day that is not a Saturday, Sunday, or legal holiday, except as provided in section 1-2-201 (3).

Source: **L. 92:** Entire article R&RE, p. 631, § 1, effective January 1, 1993. **L. 93:** (5) amended, p. 1395, § 3, effective July 1. **L. 95:** (2) and (5) amended, p. 820, § 2, effective July 1. **L. 96:** (5) amended, p. 1773, § 76, effective July 1. **L. 99:** (4) and (5) amended, p. 756, § 2, effective May 20.

Editor's note: This section is similar to former § 1-1-105 as it existed prior to 1992.

Cross references: For computation of time under the statutes generally, see § 2-4-108.

1-1-107. Powers and duties of secretary of state - penalty. (1) In addition to any other duties prescribed by law, the secretary of state has the following duties:

(a) To supervise the conduct of primary, general, congressional vacancy, and statewide ballot issue elections in this state;

(b) To enforce the provisions of this code;

(c) With the assistance and advice of the attorney general, to make uniform interpretations of this code;

(d) To coordinate the responsibilities of the state of Colorado under the federal "National Voter Registration Act of 1993", 52 U.S.C. sec. 20501 et seq.; and

(e) To serve as the chief state election official within the meaning of the federal "Help America Vote Act of 2002", 52 U.S.C. 20901 et seq., and, in that capacity, to coordinate the responsibilities of the state of Colorado under the federal act in accordance with the requirements of this code.

(2) In addition to any other powers prescribed by law, the secretary of state has the following powers:

(a) To promulgate, publish, and distribute, either in conjunction with copies of the election laws pursuant to section 1-1-108 or separately, such rules as the secretary of state finds necessary for the proper administration and enforcement of the election laws, including but not limited to rules establishing the amount of fees as provided in this code;

(b) To inspect, with or without the filing of a complaint by any person, and review the practices and procedures of county clerk and recorders, their employees, and other election officials in the conduct of primary, general, and congressional vacancy elections and the registration of electors in this state;

(c) To employ, subject to section 13 of article XII of the state constitution, the personnel deemed necessary to efficiently carry out the powers and duties prescribed in this code; and

(d) To enforce the provisions of this code by injunctive action brought by the attorney general in the district court for the judicial district in which any violation occurs. Upon an enforcement action being brought pursuant to this subsection (2)(d), the court shall expedite scheduling and the issuance of any orders such that a final ruling is made within thirty days of the action being filed. The court may continue the action beyond thirty days upon the motion of any party and upon a showing of good cause. The district court proceedings may be reviewed and finally adjudicated by the supreme court of this state if either party makes application to the supreme court within three days after the district court proceedings are terminated, unless the supreme court, in its discretion, declines jurisdiction of the case. The supreme court shall expedite scheduling and the issuance of any orders such that a final ruling is made within